

Bihar Land Acquisition Rules, 2007

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State of Bihar - Act

Bihar Land Acquisition Rules, 2007

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Bihar Land Acquisition Rules, 2007

Rule BIHAR-LAND-ACQUISITION-RULES-2007 of 2007

Published on 5 June 2007

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Bihar Land Acquisition Rules, 2007

Published vide Government of Bihar, Revenue and Land Reforms Department, Notification No. 15/D.L.A. Policy-06/2003-1292/R, dated 5.6.2007

Government of Bihar, Revenue and Land Reforms Department, Notification No. 15/D.L.A. Policy-06/2003-1292/R. Dated 5.6.2007. - In exercise of powers conferred by sub-sections (1) & (2) of Section 55 of the Land Acquisition Act, 1894 (as amended from time to time), the State Government hereby makes Rules for carrying out the purposes of the said Act (Except for carrying out the purposes of Part VII of the said Act), the publication of which is made under sub-section (2) of the said Act:-

1.

Short title, extent and commencement.

- (i) These Rules may be called The Bihar Land Acquisition Rules, 2007.

(ii)

It shall extend to the whole of State of Bihar.

(iii)

It shall come into force at once.

2.

Power to award compensation.

- (i) For acquisition of land under Section 11 of the Land Acquisition Act, 1894.

(a)

The District Collector may award compensation upto Rs. 50.00 Lakhs (Fifty Lakhs).

(b)

The Divisional Commissioner may award compensation for more than Rs. 50.00 Lakhs (Fifty Lakhs) but upto Rs. 1.50 crore (One Crore, Fifty Lakhs).

(ii)

In case of award of compensation for more than Rs. 1.50 crore (One Crore Fifty Lakhs), previous approval of the State Government shall be obtained.

(iii)

All classes of land acquisition cases, in which the value of the land acquired has to be determined the District Collector is empowered to determine rate upto Rs. 20.00 Lakhs (Twenty Lakhs) per acre and the Divisional Commissioner is empowered to determine rate upto Rs. 50.00 Lakhs (Fifty Lakhs) per acre. In case of determination of rate beyond this limit, approval of State Government, shall be obtained:

Provided that, for approval of the rate as mentioned in column (iii), it would be mandatory to compare the value of the Land to be acquired with the value fixed by the Registration Department for realization of stamp duty prevalent at the time of notification under Sections 4 & 6 of the Land Acquisition Act, 1894. In case the price of land to be acquired increases suddenly or abnormally at the time of approval of the rate, the Collector and the Divisional Commissioner would mention clearly the reason and rationale for recommending rate higher than that fixed by the Department of Registration for realization of stamp duty.

3.

Division of amount of awarded compensation.

- The District Collector may approve the Division of amount of awarded compensation amongst such persons whose interests are vested in the acquired land.

4.

Repeal.

- Notification No. 1234/R, dated 15.9.04 issued by Revenue and Land Reforms Department, Government of Bihar is hereby repealed.

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